Filing # 231275651 E-Filed 09/10/2025 03:01:09 PM

Case No. 2D2025-____; 13th Jud. Cir. Case No. 25-CA-006626

IN THE DISTRICT COURT OF APPEAL, STATE OF FLORIDA
SECOND DISTRICT

CITIZENS PROPERTY INSURANCE CORPORATION,

Petitioner,

v.

MARTIN A. ALVAREZ,

Respondent.

PETITION FOR WRIT OF PROHIBITION

SHUTTS & BOWEN LLP
Counsel for Petitioner

Garrett A. Tozier (FBN 104834)
4301 W. Boy Scout Blvd.
Ste. 300
Tampa, Florida 33607
GTozier@shutts.com
(813) 229-8900

Ricky L. Polston (FBN 648906)
Daniel E. Nordby (FBN 14588)
Amber S. Nunnally (FBN 109281)
215 S. Monroe St., Ste. 804
Tallahassee, Florida 32301
RPolston@shutts.com
DNordby@shutts.com
ANunnally@shutts.com
(850) 241-1717

INTRODUCTION

"Prejudice of a judge is a delicate question to raise . . . ." *Dickenson v. Parks*, 140 So. 459, 462 (Fla. 1932). Notwithstanding the sensitivity of the issue, however, Florida's Code of Judicial Conduct imposes a mandatory duty on *every* judge to perform her judicial duties impartially, and to disqualify herself in any proceeding in which the judge's impartiality might reasonably be questioned. *See* Fla. Code Jud. Conduct, Canon 3E(1).

Every litigant, including Citizens Property Insurance Corporation ("Citizens"), "is entitled to nothing less than the cold neutrality of an impartial judge." *State ex rel. Davis v. Parks*, 194 So. 613, 615 (Fla. 1939). As explained below, Circuit Court Judge Melissa Polo has ruled the arbitration clause in Respondent's insurance policy, and the Florida statute that authorized it, are unconstitutional—all before any arguments were made by Citizens in writing or at hearing. That announced intention of the judge's ruling is "the paradigm of judicial bias and prejudice." *Gonzalez v. Goldstein*, 633 So. 2d 1183, 1184 (Fla. 4th DCA 1994).

Citizens reasonably fears this case will not be decided fairly because Judge Polo has already prejudged the sole legal issue

underlying Respondent's claim for declaratory relief. Pursuant to section 38.10, Florida Statutes, and Florida Rule of General Practice and Judicial Administration 2.330, Citizens filed a facially sufficient motion to disqualify Judge Polo, which she denied. For the reasons that follow, this petition for writ of prohibition should be granted and Judge Polo should be recused from the circuit court proceeding.

BASIS FOR INVOKING JURISDICTION

This Court has jurisdiction to issue writs of prohibition directed to circuit courts. Art. V, § 4(b)(3), Fla. Const.; Fla. R. App. P. 9.030(b)(3). A petition for writ of prohibition is the proper procedure to seek review of an order denying a motion to disqualify a circuit court judge. *See Sutton v. State*, 975 So. 2d 1073, 1076 (Fla. 2008); *see also Citizens Prop. Ins. Corp. v. San Perdido Ass'n, Inc.*, 104 So. 3d 344, 350 n.3 (Fla. 2012) (citing *Sutton*).

NATURE OF RELIEF SOUGHT

Citizens seeks a writ of prohibition to disqualify Judge Polo from presiding over the underlying circuit court action, Case Number 2025-CA-006626. Citizens also requests the entry of an order directing Respondent to show cause why this petition should not be

granted, thereby staying the circuit court proceeding and precluding any further rulings from Judge Polo. *See* Fla. R. App. P. 9.100(h).

STATEMENT OF CASE AND FACTS

I. Statement of the Facts

A. Legal Framework

In 2002, the Florida Legislature found "a compelling public interest and a public purpose to assist in assuring that property in the state is insured and that it is insured at affordable rates . . . ." § 627.351(6)(a)1., Fla. Stat. To that end, Citizens was created as "a government entity that is an integral part of the state, and that is not a private company." *Id.*

In 2011, and consistent with its authority to abrogate the common law in section 2.01, Florida Statutes, the Florida Legislature defined how insurers could modify the contractual language in an insurance policy before an upcoming renewal period: before a policy expired, the insurer could send the insured a notice of change in policy terms along with the notice of renewal premium for a renewal policy. *See* § 627.43141(2). The insurer's "[r]eceipt of the premium payment for the renewal policy by the insurer is deemed to be

acceptance of the new policy terms by the named insured." § 627.43141(5).

Then in 2013, the Florida Legislature passed the Revised Florida Arbitration Code, chapter 682, Florida Statutes, which provides that arbitration agreements are "valid, enforceable, and irrevocable except upon a ground that exists at law or in equity for the revocation of a contract." § 682.02(1).

The legislature later placed some general conditions on insurance policies that include arbitration agreements. *See* § 627.70154. Because Citizens is a state entity, however, in 2023 the legislature exempted Citizens from those conditions and authorized Citizens to include as an endorsement to its insurance policies the arbitration agreement at issue in the underlying complaint in this case. *See* § 627.351(6)(*ll*). The Florida Office of Insurance Regulation subsequently approved that endorsement, which allows either party to the insurance contract to demand mandatory, binding arbitration at the Division of Administrative Hearings ("DOAH") under the Revised Florida Arbitration Code to swiftly resolve all aspects of an insurance claim dispute between Citizens and the insured.

The DOAH arbitrations are not chapter 120 administrative proceedings. *See id.* They are subject to sections 57.105 and 768.79 as if filed in state court and allow for normal discovery and a final arbitration hearing before an administrative law judge serving as the arbitrator under the Florida Evidence Code and the Florida Rules of Civil Procedure (subject to minor changes). *See id.*

B. Respondent agreed to the arbitration endorsement in his policy when he paid his renewal premium.

For the policy period that began October 1, 2023, and expired October 1, 2024, Citizens provided Respondent with a renewal packet that contained a notice of change of policy terms alerting Respondent that an endorsement with the arbitration agreement would be added to the policy. (A. 417-18, 431, 510-11). Respondent accepted the arbitration agreement upon Citizens' receipt of the payment for his policy premium. (A. 415). That arbitration agreement was also included in the 2024 renewal packet, which Plaintiff again accepted upon Citizens' receipt of the payment of his premium. (A. 515, 522, 528-29, 599-600).

C. Citizens demanded arbitration after Respondent filed a notice of intent to litigate a claim dispute.

In October 2024, Respondent reported a claim to Citizens for a loss purportedly covered by his policy. (A. 7). Citizens paid the claim, but Respondent disputed the amount. *See id.* Thereafter, Respondent filed a notice of intent to litigate the dispute as required by section 627.70152. (A. 8).

On June 12, 2025, Citizens filed a request for an arbitration hearing at DOAH to resolve Respondent's dispute. *See Alvarez v. Citizens Prop. Ins. Corp.*, No. 25-003159PIC (Fla. DOAH June 12, 2025) (request for arbitration hearing). The administrative law judge set the final arbitration hearing for August 29, 2025.[1] (A. 8, 44-49). Prior to the injunction entered by the circuit court in this case, the parties in the DOAH arbitration engaged in discovery, with both sides serving and responding to document requests, admissions, and interrogatories. (A. 703).

[1] The arbitration endorsement requires a final arbitration hearing to be set within 75 days, or, upon good cause, no later than 100 days. (A. 599).

II. Statement of the Case

A. Respondent filed suit in circuit court and sought an emergency injunction to stay his DOAH arbitration.

On July 11, 2025, Respondent filed the Complaint in this case. (A. 6-10). He is seeking a declaration that the arbitration endorsement in his policy with Citizens violates his right of access to courts under article I, section 21 of the Florida Constitution, and his right to due process. (A. 8-9). Respondent did not file the Complaint as a class action, did not request injunctive relief, and did not allege a violation of the Equal Protection Clause of the Fourteenth Amendment. That same day, Respondent filed an emergency motion for a temporary injunction ("Injunction Motion"). (A. 11-19). He requested the court enjoin Citizens from enforcing the arbitration endorsement in his policy and require DOAH to stay his arbitration proceeding. (A. 18).

On August 1, 2025, after an ex parte hearing, Judge Polo entered a brief written order granting Plaintiff's Injunction Motion ("Injunction Order"). (A. 52-55). The order states that her ruling is based on her review of the Injunction Motion as well as "argument of counsel." (A. 54). There is no mention of any evidence that may have

been admitted or considered. Indeed, the circuit court clerk confirmed that no exhibits were received into evidence at that hearing. (A. 821-22).

Judge Polo made the following findings in the Injunction Order:

- Likelihood of Success on the Merits: Judge Polo ruled that Plaintiff had demonstrated a likelihood of success on the merits of his access to courts claim and "alleged violations of the Due Process and Equal Protection Clauses of the Fourteenth Amendment." (A. 54).
- Irreparable Harm: Judge Polo ruled that Plaintiff established that "he and similarly situated Citizens policy holders" will suffer irreparable harm because the arbitration endorsement "compels insureds into a forum that lacks neutrality, discovery, motion practice, and meaningful judicial review." *Id.*
- Balance of Equities: Judge Polo ruled that this favored Plaintiff because "the protection of constitutional rights outweighs any administrative or operational burden to the Defendant." *Id.*

- Public Interest: Judge Polo ruled that the "public interest best served by ensuring access to the judiciary, halting enforcement of the statute and provisions that erode constitutional protections, and preventing the continued prosecution of cases currently entangled in the Defendant's constitutionally infirm administrative process." *Id.*

Based on these findings, Judge Polo enjoined Citizens from enforcing the arbitration endorsement in Plaintiff's policy as well as "the same or any substantially similar arbitration clause against any other current or future Citizens policyholder." (A. 55). She also stayed "[a]ll pending actions" at DOAH and ordered Citizens to "refrain from any action that would interfere with Plaintiff's or any other individual's ability to pursue judicial relief." *Id.*

B. Citizens appeals the Injunction Order, invokes an automatic stay, and moves to transfer venue to Leon County based on the home venue privilege.

On August 4, 2025, Shutts & Bowen and the undersigned counsel entered a notice of appearance as counsel for Citizens in the circuit court. (A. 56-57). That same day, Citizens also appealed the Injunction Order and invoked the automatic stay afforded to

government entities under Florida Rule of Appellate Procedure 9.310(b)(2). (A. 58-62). Respondent filed an emergency motion to strike Citizens' notice of appeal and to vacate the automatic stay ("Motion to Vacate"). (A. 63-93, 280-311).

In response to the Complaint, Citizens filed a motion to transfer venue ("Motion to Transfer") to Leon County based on its common law home venue privilege and the terms of the arbitration endorsement. (A. 94-279). Respondent opposed a transfer of venue, arguing that the sword-wielder exception applied because Citizens was seeking to deprive him of constitutional rights in Hillsborough County. (312-20).

C. Judge Polo vacates the automatic stay and denies a transfer of venue.

Judge Polo held a hearing on the Motion to Vacate and the Motion to Transfer on August 19, 2025. (A. 750). At the hearing she requested the parties submit proposed orders on both motions, which they did. (A. 729-46, 783, 798-808). Several days later, she entered two orders, one granting Plaintiff's Motion to Vacate and another denying Citizens' Motion to Transfer. (A. 789-92, 796-97).

Judge Polo made the following statements and rulings in those orders showing her prejudgment of the constitutional issues in this case and her bias toward Citizens:

- "The unfairness to Plaintiff is manifest. Defendant seeks to deprive him of due process and access to his chosen forum and to shield itself from judicial scrutiny by insisting on venue in a county where it resides, all while enforcing an unconstitutional clause." (A. 797).
- "Plaintiff presented verified evidence at the hearing [on the Injunction Motion] establishing disparate treatment of Citizens policyholders. Plaintiff and similarly situated policyholders of Citizens homeowners property insurance are treated differently than other private policyholders, in that they are not provided the protections of Fla. Stat. § 627.70154 regarding the binding arbitration endorsement. The selective and disparate treatment of certain policyholders over others is inherently a violation of due process." (A. 790).
- "Prior to the enactment of Fla. Stat. §627.351(6)(ll), Citizens' policyholders, like all Floridians, possessed the

fundamental right to jury trial, access to courts and due process on their breach of contract claims. The clause in Defendant's insurance policies compelling disputes into DOAH functions as an adhesion contract, offering neither a fair alternative nor a reduction in premiums. This compulsory and unequal treatment offends the very core of constitutional protections, stripping policyholders of due process and access to courts, rendering the statutory scheme unconstitutional on its face and in application." (A. 791).

- "Irreparable harm is unmistakable and severe. Plaintiff has made a preliminary showing that the DOAH forum is structurally biased and deprives policyholders of neutral discovery, motion practice, and judicial review. . . . The result is that ordinary citizens, compelled by adhesion contract, are stripped of their constitutional rights and left powerless in a tribunal that appears to favor the State's insurer." *Id.*
- "The balance of equities at this point favors Plaintiff, as the harm to constitutional rights outweighs any

> administrative or operational burden to Defendant. Significantly, lifting the stay imposes no tangible harm on Defendant because any actions temporarily enjoined can be resumed if the matter is determined in Defendant's favor, but failing to lift the stay risks depriving policyholders of constitutional protections." (A. 791-92).

Citizens immediately sought review in this Court of the order vacating the automatic stay and filed an emergency request for the stay to be reinstated pending the outcome of the appeal of the order entering an ex parte statewide injunction. Citizens also appealed the order denying the transfer of venue. (A. 794).

D. Citizens moves to disqualify Judge Polo after she prejudges the constitutional issues in this case.

Based on the statements cited above, Citizens moved to disqualify Judge Polo, arguing that she impermissibly prejudged the constitutional issues in this case. (A. 809-17). Citizens submitted a sworn affidavit in support of its motion to disqualify stating that it feared it would not receive a fair trial in front of this judge. (A. 818-19). The motion to disqualify was filed and served on Judge Polo on

August 29, 2025—just eight days after the totality of the facts constituting grounds for the motion were discovered.

Judge Polo denied the motion on September 8, 2025, finding that it was not legally sufficient. (A. 823).

ARGUMENT

A. Standard of Review

This Court reviews the denial of a motion to disqualify de novo to determine whether the allegations in the motion are legally sufficient. *Tunidor v. State*, 361 So. 3d 775, 777 (Fla. 2023); *Fla. Homeowner Equity & Lost Prop., LLC v. Fairchild*, No. 2D2024-1332, 2025 WL 2486477, at *1 (Fla. 2d DCA Aug. 29, 2025) ("To demonstrate that the trial judge erred in its conclusion that a motion to disqualify was legally insufficient, the appellant must necessarily demonstrate that the motion was legally sufficient.").

The sufficiency of a motion to disqualify is governed by the substantive requirements in section 38.10, Florida Statutes, and the procedural requirements in Florida Rule of General Practice and Judicial Administration 2.330. *Law Offices of Herssein & Herssein, P.A. v. United Servs. Auto. Ass'n*, 271 So. 3d 889, 893 (Fla. 2018). As discussed below, Citizens' motion satisfied all of those requirements.

B. Judge Polo Erred in Denying Citizens' Legally Sufficient Motion to Disqualify.

The fundamental right to a fair trial before an impartial tribunal—a basic requirement of due process—is denied when a party is faced with a presiding judge who harbors bias towards them. *See Porter v. State*, 723 So. 2d 191, 195-96 (Fla. 1998). Impartiality requires judges to not only "be impartial in their own minds," but to also "convey the image of impartiality to the parties and the public." *Peek v. State*, 488 So. 2d 52, 56 (Fla. 1986). "Under no circumstances may a judge sit in the trial of an action when his or her neutrality is shadowed or questioned." *Fuster-Escalona v. Wisotsky*, 781 So. 2d 1063, 1065-66 (Fla. 2000).

A party may move to disqualify a judge when he has a well-founded fear he will not get a fair or impartial trial. *See Montes v. Universal Prop. & Cas. Ins. Co.*, 403 So. 3d 392, 396 (Fla. 2d DCA 2025); § 38.10, Fla. Stat.; Fla. R. Gen. Prac. & Jud. Admin. 2.330(e)(1). The motion must "allege specifically the facts and reasons upon which the movant relies as the grounds for disqualification." Fla. R. Gen. Prac. & Jud. Admin. 2.330(c)(2).

The facts alleged must be accepted as true in evaluating the motion's legal sufficiency. *See Montes*, 403 So. 3d at 396; Fla. R. Gen. Prac. & Jud. Admin. 2.330(h). This is because Florida law does not require the showing of actual bias or partiality. *See Tunidor*, 361 So. 3d at 777. Rather, the test is whether facts alleged would place a reasonably prudent person in fear of not receiving a fair and impartial trial. *See MacKenzie v. Super Kids Bargain Store, Inc.*, 565 So. 2d 1332, 1335 (Fla. 1990); *Montes*, 403 So. 3d at 396; *see also State v. Oliu*, 183 So. 3d 1161, 1163 (Fla. 3d DCA 2016) ("[I]t is the appearance of bias or prejudice which requires disqualification.").

"[R]easonableness is an objective standard." *Fairchild*, 2025 WL 2486477, at *2. To determine whether a reasonably prudent person would fear that a judge has demonstrated bias, the judge's comments must be considered in the context in which they were made. *See id.* (citing *Peterson v. State*, 94 So. 3d 514, 527-28 (Fla. 2012)). The cumulative effect of multiple comments is also relevant to determining the reasonableness of a party's claim of bias. *See Partin v. Magalhaes*, 164 So. 3d 88, 89 (Fla. 4th DCA 2015); *Dura-Stress, Inc. v. Law*, 634 So. 2d 769, 770 (Fla. 5th DCA 1994). Under this standard, the motion must be reviewed from the perspective of the

litigant rather than the perspective of the judge. *See Davis v. State*, 347 So. 3d 315, 322 (Fla. 2022). "Even if a judge, therefore, is confident that he or she can preside with no bias, the judge must grant a motion to disqualify if a reasonably prudent person could question his or her impartiality." *Id.*; *see also Great Am. Ins. Co. of N.Y. v. 2000 Island Blvd. Condo Ass'n*, 153 So. 3d 384, 390 (Fla. 3d DCA 2014) ("[T]he question of disqualification focuses not on what the judge intended, but rather how the message is received and the basis of the feeling.").

Of course, a judge may form mental impressions and opinions throughout litigation, but the judge is *not* permitted to pre-judge the case. *See, e.g.*, *1440 Plaza, LLC v. New Gala Bldg., LLC*, 314 So. 3d 555, 557 (Fla. 3d DCA 2020); *Great Am. Ins. Co.*, 153 So. 3d at 386. A judge's predisposition to rule against a party prior to considering the party's evidence is the "paradigm of judicial bias and prejudice" and disqualification is required. *Real Estate Golden Invs. Inc. v. Larrain*, 278 So. 3d 812, 813-14 (Fla. 3d DCA 2019) (citation omitted); *see also Barnett v. Barnett*, 727 So. 2d 311, 312 (Fla. 2d DCA 1999) (holding that judge who prejudged custody case before conclusion of trial should have granted disqualification).

Here, Judge Polo prejudged Respondent's claim that mandatory arbitration at DOAH to resolve his coverage dispute violates his right to due process and access to courts. In reviewing Plaintiff's motion to vacate the automatic stay, Judge Polo was required to determine whether Plaintiff is *likely* to prevail in Citizens' appeal of the ex parte order granting a statewide temporary injunction. *See State v. Planned Parenthood of Sw. & Cent. Fla.*, 342 So. 3d 863, 868-69 (Fla. 1st DCA 2022). Respondent himself acknowledged this standard in the proposed order he submitted granting his Motion to Vacate. (A. 804). Instead, Judge Polo removed Respondent's reference to the *likelihood* of success on the merits before lifting the automatic stay and ruling that the statute authorizing the arbitration endorsement and the endorsement itself *are* unconstitutional. (A. 791). This was not accidental—she did it twice in the order on the Motion to Vacate. *Id.*

For example, Judge Polo wrote in her stay order that Citizens' use of the arbitration endorsement in this case (and others) is "inherently a violation of due process," "offends the very core of constitutional protections," "strip[s] policyholders of due process and access to courts," and is "unconstitutional on its face and in application." (A. 790-91). She also characterized the arbitration

endorsement as an "adhesion contract" and determined that "the DOAH forum is structurally biased" which leaves policyholders "powerless in a tribunal that appears to favor the State's insurer." (A. 791).

Judge Polo made similar statements in her orders granting a temporary injunction and denying a transfer of venue. She described the arbitration endorsement as "unfair" and "unconstitutional" and stated that Citizens "seeks to deprive [Respondent] of due process and access to his chosen forum." (A. 797). She labeled arbitration at DOAH as "[Citizens'] constitutionally infirm administrative process." (A. 54). And she characterized the arbitration endorsement as "erod[ing] constitutional protections" and "compel[ling] insureds into a forum that lacks neutrality, discovery, motion practice, and meaningful judicial review." *Id.*

Judge Polo's statements—made in three different orders *before* any briefing or hearing on the merits of Respondent's claim—make it clear that Judge Polo has "crossed that line from forming mental impressions to prejudging the issue." *1440 Plaza*, 314 So. 3d at 557 (quoting *Barnett*, 727 So. 2d at 312). Citizens' fear of Judge Polo's

inability to remain impartial is reasonable when viewed in the context of the case's procedural history thus far.

Respondent's Complaint was filed on July 11, 2025. (A. 6). The ultimate issue in this case is whether the statute and arbitration endorsement are constitutional. Judge Polo's first order questioning the constitutionality of the statute and arbitration endorsement was entered three weeks after the Complaint was filed—before Citizens appeared in the case and 12 days before Citizens' responsive pleading was due. (A. 54-55). In that responsive pleading, filed on August 5, 2025, the only relief Citizens requested was to transfer venue to Leon County based on its common law home venue privilege and the terms of the arbitration endorsement. (A. 94-98). No dispositive motions have been filed nor has there been any briefing or argument on the merits of Respondent's request for declaratory relief. Yet, Judge Polo has already decided the statute and endorsement are unconstitutional in the very early stages of this case, thereby depriving Citizens of its right to address the sole legal issue in Respondent's Complaint, and to have it decided by an impartial tribunal.

Citizens sufficiently alleged that the cumulative effective of the statements in Judge Polo's pre-merits orders left it with an objectively reasonable fear it will not receive a fair trial from Judge Polo. The motion to disqualify was accompanied by a sworn affidavit from Citizens' corporate representative as required by Rule 2.330. (A. 818-19). Therefore, Judge Polo was required to "immediately enter an order granting disqualification and proceed no further in the action." Fla. R. Gen. Prac. & Jud. Admin. 2.330(h); *see, e.g.*, *Keating v. State*, 110 So. 3d 538, 540 (Fla. 4th DCA 2013) ("[W]here a court enters an adverse ruling without allowing a party a fair opportunity to present evidence or argument regarding a significant issue, disqualification may be required."). Instead, she denied the motion to disqualify, finding it legally insufficient with a citation to *Leila Corp. of St. Pete v. Ossi*, 144 So. 3d 644, 646 (Fla. 2d DCA 2014). (A. 823).

Presumably, Judge Polo's citation to *Leila* is a reference to the general rule that an adverse ruling, without more, cannot form the basis for disqualification. *See id.* (citing *Santisteban v. State*, 72 So. 3d 187, 194 (Fla. 4th DCA 2011) ("The fact that the judge has made adverse rulings against the [movant] in the past is not an adequate ground for recusal, nor is the mere fact that the judge has previously

heard the evidence.")). The adverse ruling in *Leila* was a final judgment that was subsequently reversed, which is distinguishable from this case.

This Court laid out the background facts in *Leila* as follows:

> Judge Barton entered a final judgment against the petitioners, finding that both the petitioners and the respondents engaged in a scheme to defraud one petitioner's creditors. The court found that "the parties candidly admitted that they participated in the plan to hide Dr. Agia's assets from a potential personal injury judgment creditor." Accordingly, rather than considering the merits of the multiple claims and counterclaims in the lawsuit, Judge Barton entered judgments providing no relief to any party, based on the doctrine of unclean hands. The petitioners appealed to this court, and on January 17, 2014, this court reversed and remanded for additional proceedings. On January 23, 2014, within ten days of the entry of this court's opinion, the petitioners filed a motion to disqualify Judge Barton, asserting that "it is clear from the provisions of the Final Judgment dated October 11, 2012, that although there is no basis in law or fact as evidenced by the opinion of the Second District Court of Appeal dated January 17, 2014, Judge Barton unquestionably believes that the Plaintiffs engaged in a conspiracy to defraud." . . . Judge Barton denied the motion to disqualify as facially insufficient.

144 So. 3d at 645-46 (citation omitted). In essence, the petitioners' basis for disqualification was that they feared they would not receive a fair trial on remand of the final judgment that had been overturned. *Id.* at 646. But this Court denied the writ of prohibition and ruled

that the motion to disqualify was not legally sufficient because the judge "made an adverse ruling (subsequently overturned by this court) in the exercise of his legitimate judicial function." *Id.*

Leila is not applicable and does not control the outcome of this petition. Citizens' motion to disqualify is not based on an adverse final judgment; it is based on the multiple rulings made by Judge Polo *prior* to hearing any argument from Citizens about the merits of this case. In those circumstances, it is objectively reasonable for Citizens to believe Judge Polo has prejudged this case by already finding the statute and arbitration endorsement to be unconstitutional and that she will not be impartial in future proceedings related to the merits of Respondent's claim. *See Samra v. Bedoyan*, 299 So. 3d 1138, 1141 (Fla. 3d DCA 2020) (holding that movant's fear was reasonable when court had already decided issues in prior ruling that substantially overlapped with issues in pending motion). Therefore, Judge Polo erred in denying Citizens' motion to disqualify her and this petition should be granted. *See Amato v. Winn Dixie Stores/Sedgwick James*, 810 So. 2d 979, 983 (Fla. 1st DCA 2002) (holding that a premature ruling on the merits is a violation of due process).

CONCLUSION

For the foregoing reasons, Citizens request that the Court: (1) issue a preliminary show cause order staying the circuit court proceeding pending the outcome of this petition; and (2) grant the petition, direct Judge Polo to recuse herself, and order reassignment to a different judge.

Respectfully submitted,

SHUTTS & BOWEN LLP
Counsel for Petitioner

/s/ Ricky L. Polston

Ricky L. Polston (FBN 648906)
Daniel E. Nordby (FBN 14588)
Amber S. Nunnally (FBN 109281)
215 South Monroe St., Ste. 804
Tallahassee, Florida 32301
RPolston@shutts.com
DNordby@shutts.com
ANunnally@shutts.com
(850) 241-1717

Garrett A. Tozier (FBN 104834)
4301 W. Boy Scout Blvd.
Ste. 300
Tampa, Florida 33607
GTozier@shutts.com
(813) 229-8900

CERTIFICATE OF SERVICE

I certify that a copy of this document has been filed with the Florida Courts E-Filing Portal on September 10, 2025, and electronically served to:

Isaiah Harvey
FLORIDA INSURANCE LAW GROUP, LLC
Town Center One, Suite 2267
8950 SW 74th Court
Miami, FL 33156-3171
Pleadings@flinslaw.com
isaiah@itl.legal

Co-Counsel for Respondent

Lynn A. Brauer
INSURANCE TRIAL LAWYERS
Town Center One, Suite 2267
8950 SW 74th Court
Miami, FL 33156-3171
Pleadings@flinslaw.com
lynn@itl.legal
pleadings@itl.legal

Co-Counsel for Respondent

Honorable Melissa Polo*
Circuit Court Judge
circivdivc@fljud13.org
patricia.depagter@fljud13.org

*Service required by Rule 9.100(e)(2)

/s/ Ricky L. Polston
ATTORNEY

CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the requirements of Florida Rules of Appellate Procedure 9.045(b) and (e) and 9.100(g) because it was prepared using Bookman Old Style 14-point font and because the word count from the word-processing system used to prepare this document is 4,725.

/s/ Ricky L. Polston
ATTORNEY